The 'licence to kill' section was upheld on the basis that it had inbuilt safeguards. The court did not think much of the issue that two of those safeguards were left entirely to the judgement of the relevant officer. It was for the officer to determine whether it was necessary to take action and also whether it was necessary to issue any warning at all before taking that action. It also declined to adopt the suggestion that the use of force under the AFSPA only be permitted against people that were armed. Leaving the 'licence to kill' section intact meant that unarmed violators of curfew orders could continue to be 'shot off hand'.[21]

On the 'licence to destroy', the court was told that the power was framed very broadly, as it enabled the destruction of any structures used as a hideout by armed gangs or absconders. This would apply equally to bunkers as it would to schools and hospitals. The court saw no merit in the argument, stating that this power was directed towards tracking down those who were evading legal process. The constitutional challenges to the 'licence to arrest' and the 'licence to search' sections were dismissed just as easily. These powers were not very different from the powers conferred upon police officers under the ordinary law, the court said. Section 6 of the AFSPA, which granted immunity from prosecution to officers without permission from the central government, was also upheld. For the court, this section did not grant impunity, but only granted the protection that officers needed to conduct their operations.

The army headquarters periodically circulated a memorandum entitled 'Dos and don'ts while acting under the Armed Forces (Special Powers) Act 1958'. The 'dos' in the list included acting in close communication with the civil administration, aiming 'low and short' when opening fire, and submitting a report to the police when handing over individuals that are arrested. Directions not to use excessive force, not to engage in torture and not to accept 'presents, donations and rewards' were all in the 'don'ts' section of the memorandum. The attorney general submitted this memorandum to the court, with a view to convincing the court that there was an 'effective check' against any misuse or abuse of powers under the AFSPA.